

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

★ JUL 28 2008 ★

BROOKLYN OFFICE

Sept

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RAYMOND JARVIS,

Plaintiff,

-against-

THE CITY OF NEW YORK, PATRICK BURNETT,
ERICK NOLAN, JAMAAL MILLER, and
"JOHN/JANE DOES #1-10" believed to be members
of the NEW YORK CITY POLICE DEPARTMENT

Defendants.

COMPLAINT

8069

ROSS, J.
PLAINTIFF DEMANDS
A TRIAL BY JURY
GO, M.J.

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Plaintiff, Raymond Jarvis, by his attorneys, Reibman & Weiner, as and for his
Complaint, hereby alleges as follows, upon information and belief:

PARTIES, VENUE and JURISDICTION

1. At all times hereinafter mentioned plaintiff, a black male, was a resident of
Kings County, within the City and State of New York.

2. At all relevant times hereinafter mentioned, defendant City of New York
("New York City"), was and is a municipal corporation duly organized and existing under and by
virtue of the laws of the State of New York and acts by and through its agencies, employees and
agents, including, but not limited to, the New York City Police Department ("NYPD") and its
employees.

3. At all times hereinafter mentioned, defendant Patrick Burnett was a
member of the NYPD whose shield number is 30205, employed, retained, trained and supervised
by New York City, and was a state actor performing his duties under color of law. Burnett is

sued in his official and individual capacities.

4. At all times hereinafter mentioned, defendant Erick Nolan was a member of the NYPD whose shield number is 1839, employed, retained, trained and supervised by New York City, and was a state actor performing his duties under color of law. Nolan is sued in his official and individual capacities.

5. At all times hereinafter mentioned, defendant Jamaal Miller was a member of the NYPD whose shield number is 4368, employed, retained, trained and supervised by New York City, and was a state actor performing his duties under color of law. Miller is sued in his official and individual capacities.

6. At all times hereinafter mentioned, defendants "John/Jane Does #1-10" (collectively referred to herein as the "Doe defendants") were officers, detectives, sergeants, or members of the NYPD of another rank, employed, retained, and trained by New York City, and were state actors performing their duties under color of law.

7. This Court has jurisdiction of this action pursuant to 28 U.S.C. §§ 1331, 1343 and 1367, and 42 U.S.C. §§ 1981 and 1983.

8. Venue is properly laid, pursuant to 28 U.S.C. Section 1391, et seq. in the Eastern District of New York, where the plaintiff and defendant City of New York reside.

9. That plaintiff timely served a Notice of Claim on the municipal defendant.

10. At least thirty days have elapsed since service of plaintiff's Notice of Claim and adjustment and payment thereof has been neglected or refused.

11. That the within action has been initiated within one year and ninety days of the happening of the events of which plaintiff complains.

RELEVANT FACTS

12. At or around the early morning hours of September 21, 2007, plaintiff was lawfully present at or about the intersection of Dekalb Avenue and Marcus Garvey Boulevard in Kings County, New York, while traveling to his nearby home when he was stopped, beaten and arrested by the defendants.

13. Plaintiff, a slight man who was about five-feet eight-inches tall and who weighed about 140 pounds, was initially detained by two of the defendants and questioned as to his address and reason for being present. Dissatisfied with plaintiff's response, plaintiff was violently assaulted by one defendant, while another struck him with an object, which may have been an asp. One of the defendants then sprayed mace or pepper spray in plaintiff's eyes, while the other defendants, including officers who appeared on the scene after the initial stop repeatedly struck plaintiff in the head and body .

14. Plaintiff was subsequently brought to a local NYPD station house, processed, and transported to Kings County Central Booking, following which plaintiff was arraigned on a variety of charges alleging, in sum, that he assaulted the defendants, obstructed governmental administration, and resisted arrest.

15. Plaintiff was subsequently prosecuted under docket number 2007KN072410 based upon allegations made by the defendants to the Office of the Kings County District Attorney, which were knowingly materially false, and contained false statements of fact and/or intentional omissions of material facts.

16. Defendants' deliberate making of false statements of fact, both in documents provided to the Office of the Kings County District Attorney, and to the NYPD, as

well as their intentional omissions of material fact, were designed to cover up the misconduct of the defendants, and ensure that none of the defendants be held accountable for their assault on the plaintiff.

17. Indeed, despite their express obligations to the contrary, at no time did any of the defendants take any steps to protect plaintiff from the assault carried out by the other defendants, or otherwise defend plaintiff and limit the violation of his person and rights under the state and federal constitutions.

18. Following plaintiff's arraignment, he was held in custody at Rikers Island until September 26, 2007, at which time the grand jury declined to indict plaintiff.

19. Despite the absence of probable cause for the arrest and prosecution of plaintiff, the prosecution of Mr. Jarvis on the entirely false allegations made by the defendants continued, and plaintiff was required to appear in Court on multiple occasions in 2007 and 2008.

20. On September 23, 2007, while still in defendants' custody, plaintiff was transferred to Woodhull Hospital, where plaintiff was diagnosed as suffering from multiple fractures and injuries relating to the assault.

21. On March 28, 2008, all outstanding charges against the plaintiff were finally dismissed in his favor pursuant to New York Criminal Procedure Law 30.30.

22. At no time did any of the defendants have sufficient cause to detain, search, arrest, prosecute, or use any level of force whatsoever against Mr. Jarvis, nor was there any basis for the defendants to reasonably believe that such cause existed.

23. At all times relevant herein, each of the defendants, including all of the John Doe defendants, were acting within the scope of their employment with the NYPD and the

City of New York, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

24. Plaintiff repeats the allegations contained in paragraphs "1" through "23" above as though stated fully herein.

25. Defendants willfully and intentionally seized, arrested and imprisoned plaintiff without sufficient cause, and without a reasonable basis to believe such cause existed.

26. Defendants willfully and intentionally subjected plaintiff to excessive force by employing more than what was reasonably necessary under the circumstances, and without a reasonable basis to believe that the use of such force was necessary.

27. By so doing, the individual defendants, individually and collectively, subjected the plaintiff to false arrest and imprisonment, excessive force, unlawful searches of person and property, and malicious use and abuse of process, the deprivation of due process, and thereby violated, conspired to violate, and aided and abetted in the violation of plaintiff's rights under the First, Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution

28. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, the loss of his constitutional rights, and unlawful incarceration.

SECOND CAUSE OF ACTION

29. Plaintiff repeats the allegations contained in paragraphs "1" through "28" above as though stated fully herein.

30. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within the NYPD in order to ensure that the well established rights of the citizenry were understood and respected.

31. Upon information and belief, defendant knew that there was inadequate supervision within the NYPD on and prior to September 21, 2007, and that NYPD guidelines, as promulgated in the Patrol Guide, and elsewhere, were routinely ignored and violated by NYPD members. Despite their prior notice of inadequate supervision, defendant took no steps to ensure that reasonable and appropriate levels of supervision were in place in order to reasonably provide that NYPD officers, employees, and their agents, engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers to stop, detain, search, use force against, and arrest members of the public, including and specifically, the plaintiff herein.

32. Defendant was deliberately indifferent to the risk that the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiff's rights in particular.

33. By reason thereof, defendant has violated 42 U.S.C. § 1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, the loss of his constitutional rights, and unlawful incarceration.

THIRD CAUSE OF ACTION

34. Plaintiff repeats the allegations contained in paragraphs "1" through "33" above as though stated fully herein.

35. At all times hereinafter mentioned the municipal defendant, the City of

New York, its agents, employees and servants, including but not limited to the aforementioned individual defendants, acted under color of the statutes, customs, ordinances and usage of the City and State of New York.

36. That the defendant, City of New York, by its persistent lax supervision of its officers, by its practice of requiring its officers to effect a certain minimum number of arrests, and persistent and arbitrary refusal to discipline its officers and to fully and adequately investigate allegations of abuse, neglect, cruelty, and violation of departmental rules and regulations, has demonstrated a pattern and practice of abuse of power and deprivation of civil rights by subjecting persons to unlawful and unjustified detentions and deprivations of legal rights and remedies.

37. Such actions are believed to be comprised of, *inter alia*, the persistent harassment of individuals, racial and ethnic discrimination, false arrest of said persons, insensitivity, intolerance, physical punishment and abuse and excessive force, failure to investigate claims of abuse and violations of departmental rules and regulations, failure to discipline officers when necessary, covering up such incidents when possible, and generally creating and fostering an environment in which an attitude of "cover-up" and denial of officer misbehavior, tortious acts, and violations of law are condoned and accepted, all of which is common knowledge to the subject community and residents within the New York City area.

38. By reason thereof, the municipal defendant has violated 42 U.S.C. §1983, and thereby deprived plaintiff of his right to equal protection under the law and impeded the due course of justice, in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments of the Constitution of the United States, and the Constitution of the State of New York, and caused

plaintiff to suffer emotional and physical injuries, mental anguish, the loss of his constitutional rights, and unlawful incarceration.

FOURTH CAUSE OF ACTION

39. Plaintiff repeats the allegations contained in paragraphs "1" through "38" above as though stated fully herein.

40. Defendants' violation of plaintiff's constitutional rights was motivated by defendants' racial animus towards plaintiff and was knowingly undertaken with the intent to deny the plaintiff his right to full and equal benefit of the laws on the basis of his race.

41. By reason of the foregoing, defendants violated 42 U.S.C. § 1981 and caused plaintiff to suffer emotional and physical injuries, mental anguish, the loss of his constitutional rights, and unlawful incarceration.

FIFTH CAUSE OF ACTION

42. Plaintiff repeats the allegations contained in paragraphs "1" through "41" above as though stated fully herein.

43. Plaintiff was intentionally, willfully, maliciously and/or with reckless disregard, seized, arrested, detained, beaten, imprisoned, and subjected to criminal process by the defendants.

44. At no time did defendants have any colorable legal basis for seizing, searching, arresting, imprisoning, beating and/or commencing criminal process against plaintiff, and said conduct was unlawful.

45. The defendants are therefore liable to plaintiff for assault and battery, excessive force, false arrest and imprisonment, malicious prosecution, and malicious use and

abuse of process.

46. By reason thereof, the defendants have caused plaintiff to suffer emotional and physical injuries, mental anguish, the loss of his constitutional rights, and unlawful incarceration.

SIXTH CAUSE OF ACTION

47. Plaintiff repeats the allegations contained in paragraphs "1" through "46" above as though stated fully herein.

48. The defendants, individually, jointly and severally, and through their agents, servants, employees, and/or associates were responsible for the proper, adequate and necessary permissible police and law enforcement conduct with respect to any interaction with plaintiff.

49. The police and law enforcement conduct engaged in and rendered to plaintiff by the individual defendants, individually, jointly and through their agents, servants, employees, and/or associates was careless and negligent and not in accordance with good and accepted police and law enforcement practices and in violation of NYPD policies and procedures and was not otherwise reasonable conduct under the circumstances then and there existing.

50. As a result of the carelessness and negligence and violation of NYPD procedures and policies by the respective defendants, their agents, servants, employees and/or associates, plaintiff was caused to sustain severe and irreparable personal injury and damage.

51. By reason thereof, the defendants have caused plaintiff to suffer emotional and physical injuries, mental anguish, the loss of his constitutional rights, and unlawful incarceration.

SEVENTH CAUSE OF ACTION

52. Plaintiff repeats the allegations contained in paragraphs "1" through "51" above as though stated fully herein.

53. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within the NYPD.

54. Upon information and belief, defendant knew that there was inadequate supervision within the NYPD on and prior to September 21, 2007, and that NYPD guidelines, as promulgated in the Patrol Guide, and elsewhere, were routinely ignored and violated by NYPD members. Despite their prior notice of inadequate supervision, defendant took no steps to ensure that reasonable and appropriate levels of supervision were in place in order to reasonably provide that NYPD officers, employees, and their agents, engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers to stop, detain, search, use force against, and arrest members of the public, including and specifically, the plaintiff herein.

55. By reason thereof, defendants are liable to plaintiff for their negligent supervision and retention of NYPD employees and agents, and caused plaintiff to suffer emotional and physical injuries, mental anguish, the loss of his constitutional rights, and unlawful incarceration.

EIGHTH CAUSE OF ACTION

56. Plaintiff repeats the allegations contained in paragraphs "1" through "55" above as though stated fully herein.

57. Defendants' willfully and intentionally seized, beat, arrested, and plaintiff

to criminal process without cause, and without a reasonable basis to believe such cause existed, and in so doing, violated, conspired to violate, and aided and abetted in the violation of plaintiffs' rights under Article 1, §§11, 12 of the Constitution of the State of New York.

58. Defendants' violation of plaintiffs' state constitutional rights was knowingly undertaken with the intent to deny the plaintiff his right to full and equal benefit of the laws on the basis of race.

59. By reason thereof, defendants have caused the plaintiff to be deprived of his state constitutional rights, and to suffer loss of liberty, humiliation and embarrassment, emotional and physical suffering, and mental anguish.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

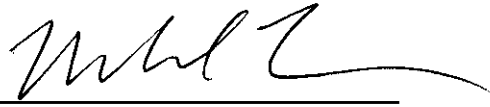
WHEREFORE, the Plaintiff demands judgment against Defendants jointly and severally as follows:

- i. on the first cause of action actual and punitive damages in an amount to be determined at trial;
- ii. on the second cause of action actual damages in an amount to be determined at trial;
- iii. on the third cause of action actual damages in an amount to be determined at trial;
- iv. on the fourth cause of action actual and punitive damages in an amount to be determined at trial;

- v. on the fifth cause of action actual and punitive damages in an amount to be determined at trial;
- vi. on the sixth cause of action actual and punitive damages in an amount to be determined at trial;
- vii. on the seventh cause of action actual and punitive damages in an amount to be determined at trial;
- viii. on the eighth cause of action actual and punitive damages in an amount to be determined at trial;
- ix. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of this action; and
- x. such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
July 24, 2008

REIBMAN & WEINER

By: 

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